



Vermont Center for Crime Victim Services

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SEXUAL ASSAULT PROGRAM MENTAL HEALTH POLICY

INTRODUCTION

Coverage for mental health counseling after a person has experienced a sexual assault and has obtained a sexual assault exam may be covered by the Sexual Assault Program at the Vermont Center for Crime Victim Services.

If, after receiving a sexual assault examination as defined by statute [V.S.A. 32 §1407(b)], the victim may choose to seek mental health counseling. The Sexual Assault Program can consider costs for mental health counseling not covered by the victim's health insurance. The victim's insurance must be billed first and any co-payment, coinsurance, and/or deductible amounts up to the Program's policy limits will be considered.¹ The Sexual Assault Program can consider payment of up to 20 sessions of mental health counseling after a victim has obtained a medical sexual assault examination.

The victim is not required to report the sexual assault to law enforcement.

ELIGIBILITY

Once the Sexual Assault Program has received a Sexual Assault Billing Form from a health care provider or health care facility verifying that a sexual assault examination was performed, a claim is opened. The Sexual Assault Program can then consider payment of counseling, up to 20 sessions. The victim must contact the Sexual Assault Program Specialist at the Vermont Center for Crime Victim Services to initiate the counseling process. Once the sexual assault victim has provided the Program with the name and phone number of the counselor that they choose, the Program will contact the counselor to set up payment.

Only the victim of sexual assault is eligible for individual or group mental health services. In cases where the victim is a minor, family therapy is allowable and must include both the minor victim and the parent/legal guardian in the session(s).

¹ If a person seeking counseling has VT-Medicaid and a clinician does not accept it, the insurance requirement can be waived.

ELIGIBLE MENTAL HEALTH PROVIDERS

The Program will pay only for allowable services rendered by providers who are licensed in the state that they practice or registered on the Vermont roster of non-licensed and non-certified psychotherapists. This list may include:

- Licensed psychologist or licensed psychiatrist.
- Licensed clinical social worker or mental health counselor.
- Psychiatric nurse clinician.
- Certified school counselor, M.Ed.

An emergency services screener working at a mental health agency designated by the State of Vermont who works under the supervision of a licensed psychologist, psychiatrist, clinical social worker, or mental health counselor.

The counselor must notify the Sexual Assault Program if their license or roster becomes inactive, revoked, or conditioned in the state in which they practice. A counselor must also inform the Sexual Assault Program immediately, in writing, if charges are ever filed against them by the Office of Professional Regulation.

PAYMENT PROCEDURES

Counseling costs will be paid upon submission of a bill for services rendered which includes the provider's address/billing data, appropriate CPT billing code including minutes, and specific dates that the provider saw the client for each individual or group counseling session. If the victim has insurance an explanation of benefits from the insurance company for each date of service billed must be submitted with the itemized bill. The Program will not consider payment for the following:

1. Missed appointments
2. Court appearances
3. Travel time
4. Report writing
5. Interest charged on outstanding balances
6. Advocacy functions
7. Crisis telephone counseling
8. Case management

GUIDELINES & FEE SCHEDULE

The Sexual Assault Program will pay for up to a maximum of 20 mental health counseling sessions, either individual or group, relative to the sexual assault according to the following schedule based on date of service:

August 12, 2024 forward:

- One-hour individual sessions will be paid at a maximum of \$100.00 per session. Individual sessions will be pro-rated according to the length of the session based on this rate.
- Group sessions will be paid at \$45.00 per session flat rate and will not be pro-rated.

July 1, 2021 - August 11, 2024

- One-hour individual sessions will be paid at a maximum of \$85.00 per session. Individual sessions will be pro-rated according to the length of the session based on this rate.
- Group sessions will be paid at \$45.00 per session flat rate and will not be pro-rated.

July 1, 2008 – June 30, 2021

- One-hour individual sessions will be paid at a maximum of \$70.00 per session. Individual and family sessions will be pro-rated according to the length of the session based on this rate.
- Group sessions will be paid at \$35.00 per session flat rate and will not be pro-rated.

If the victim has insurance the Program will pay applicable coinsurance, copayment, and/or deductible amounts up to maximum allowed per session based on fee schedule for date of service.

Counseling bills must be submitted to the client's insurance company first before submission to the Sexual Assault Program. Providers who are contracted with an insurance company to accept the insurance company payments as "payment in full" cannot bill the Sexual Assault Program for the difference in the amount billed versus the allowable amount that is paid. Coinsurance, copayments and/or coverage of deductibles are allowed, if charges do not exceed the Program policy maximums stated above. If the victim is uninsured, bills are submitted directly to the Sexual Assault Program at the Vermont Center for Crime Victim Services.

TREATMENT PLANS

To be eligible for payment of counseling expenses, a counselor must submit a current Sexual Assault Program Mental Health Treatment Plan which must:

- a. Define the symptoms to be treated that are directly related to the sexual assault/abuse
- b. Address how the proposed treatment will help the victim manage those symptoms

Such treatment plans will be approved for up to a maximum of 20 sessions and must be submitted after the initial four sessions of treatment. Because early intervention has proven effective in treating trauma, the Program will pay for up to four sessions prior to the receipt of an initial treatment plan. The first four sessions are considered part of the initial 20 sessions of the initial treatment plan.

CHILD VICTIMS IN DEPARTMENT OF CHILDREN AND FAMILIES (DCF) CUSTODY

The Sexual Assault Program does not cover counseling for those children who are in the custody of the Vermont Department of Children and Families that have been sexually assaulted.